

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 16-16

MAVL CAPITAL, INC., IAM & AL GROUP INC. and MAXIM OSTROVSKIY,
(Complainants)

v.

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,
(Respondents)

RESPONSE TO COMPLAINANTS' IMPROPER SEPTEMBER 6, 2017
SO-CALLED "STATUS REPORT"

Respondent Marine Transport Logistics, Inc. (hereinafter, "MTL"), through its undersigned counsel, submits this response to the so-called "Status Report" filed by Complainants on September 6, 2017. As addressed herein, Complainants "Status Reports" are improper attempts to conduct further unrequested briefing of the pending Exceptions.

1. **Complainants' so-called "Status Report" is simply yet another improper attempt to submit briefing on a pending decision.**

First, Complainants' attempt to continue briefing of Exceptions after the close of submissions, by whatever improper means possible should, by this point, be familiar to the Commission; similar actions were taken by Complainants' in Crocus FZE, et al. v Marine Transport Logistic, Inc., Docket No. 15-04 [see March 6, 2017 Memorandum Opinion and Order, denying Complainants' attempt to "have the last word"].

In this regard, perhaps the best advocate against the use of these so-called “Status Reports” to improperly brief the Commission on pending decisions is actually Complainants’ counsel, M. Nussbaum Esq., himself. As Complainants’ counsel argued in the matter of Igor Ovechnikov, et al. v. Hitrinov, et al., Docket No. 15-11:

In the first instance, the undersigned vehemently objects to respondents’ gross violation of the Rules of Practice and Procedure, by submitting a wholly gratuitous Status Report not requested by the Presiding Officer. Accordingly, the Presiding Officer is respectfully urged to reject said gratuitous and unsolicited Status Report, and to accord same no consideration whatsoever in the litigation of this matter.

See Docket No. 15-11 (Doc. 91), “Status Report” dated August 18, 2016.

Complainants’ counsel’s objections in Igor Ovechnikov, et al. v. Hitrinov, et al., are equally applicable here. Complainants’ so-called Status Report is “wholly gratuitous”, it was not requested by the Presiding Officer, and it is “a gross violation of the Rules of Practice and Procedure.” Respondents, thus, adopt the position previously espoused by Complainants’ own counsel in Docket No. 15-11, and urge the Commission to accord Complainants “Status Report[s]” “no consideration whatsoever in the litigation of this matter.”

Notwithstanding the foregoing, Complainants’ “Status Report” also introduces nothing of consequence or relevance to the pending Exceptions, as addressed next.

2. Complainants’ so-called “Status Report” does not raise any new exception(s) to the January 17, 2017 Initial Decision.

The January 17, 2017 Initial Decision at issue clearly set out Administrative Law Judge Clay G. Guthridge’s reasoning for dismissing the Complainants’ claims concerning the 2006 Mercedes SL65, on the basis that:

Complainants do not allege any facts supporting a claim that MTL entered into a contract of carriage with Complainants to transport the Mercedes to Germany when it agreed to store the Mercedes.

Initial Decision, at p. 14 (underline added).

Respectfully, the issue presently before the Commission is not and has never been whether MTL was acting as a NVOCC on a contract of carriage for ocean transportation. Instead, the issue, as set out in the Initial Decision, is that the Complainants were not parties to any contract of carriage with MTL and thus, do not have a valid Shipping Act claim against MTL. It is the contract of carriage between MTL and Complainants, or lack thereof in this case, that required the partial dismissal of Complainants' claim.

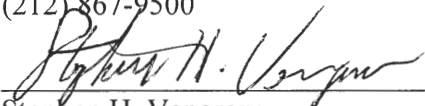
Complainants, in their filed Exceptions, went to great lengths to avoid addressing this issue. Instead, from a reading of Complainants' February 8, 2017 Exceptions, Complainants' argument is seemingly that an implied contract of carriage existed between Complainants and MTL, for the export of the Mercedes from the U.S. to Germany. See Complainants' Exceptions, dated February 8, 2017, at pp. 17-18. This position is without any factual or legal merit, as already briefed by Respondents in opposition to Complainants' pending Exceptions.

However, in the context of the Commission striking or disregarding Complainants' improper "Status Reports", inclusive of Complainants' prior June 21, 2017 "Status Report," the point is that Complainants' "Status Reports" have not raised any facts to dispute the Initial Decision. In reading Complainants' "Status Report," it is clear that nothing has changed to alter or affect the Initial Decision or to warrant Complainants' improper "Status Report." Instead, Complainants are now taking the

meritless position that MTL's relationship with Maersk, which reveals that MTL "was acting in the capacity of NVOCC with respect to the shipment" will, somehow, change the outcome of the Initial Decision. This is simply erroneous because, again, the issue is not whether MTL generally was acting as a NVOCC on an ocean carriage, but whether MTL *specifically* was acting as a NVOCC on a contract of carriage with Complainants.

Accordingly, Respondents respectfully request that the Commission disregard Complainants' prior "Status Reports" and, as the Commission deems necessary, Respondents further respectfully request that Complainants require Complainants to cease their disruption of the orderly resolution of Complainants' Exceptions.

Dated: September 12, 2017
New York, NY

Respectfully submitted,
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CERTIFICATE OF SERVICE

The undersigned declares under penalty of perjury that the following is true and correct:

1. I am over the age of eighteen years and I am not a party to this action.
2. On September 12, 2017, I served a complete copy of Respondent's RESPONSE TO COMPLAINANTS' IMPROPER SEPTEMBER 6, 2016 SO-CALLED "STATUS REPORT" in Docket No. 16-16 by mailing same to the below parties by regular mail, and by e-mail to:

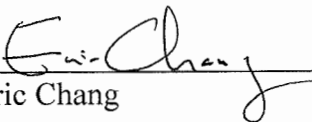
Original plus 5 copies to:

Secretary, Federal Maritime Commission
800 N. Capital St., NW.
Washington DC 20573-0001
secretary@fmc.gov

Copy by regular mail only to:

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Eric Chang

Dated: September 12, 2017
New York, New York